

December 18, 2006



U.S. Department
of Transportation

400 Seventh Street, S.W.
Washington, D.C. 20590

**Pipeline and Hazardous
Materials Safety Administration**

DOT-SP 14383

EXPIRATION DATE: November 30, 2008

(FOR RENEWAL, SEE 49 CFR § 107.109)

1. GRANTEE: Dairyland Power Cooperative
Genoa, WI
2. PURPOSE AND LIMITATION:
 - a. This special permit authorizes the one-way, one-time transportation in commerce of one reactor pressure vessel in alternative packaging, containing Class 7 radioactive material, to be classified as radioactive material. The reactor pressure vessel will be transported under special arrangement, and transported in a non-specification package from the La Crosse Boiling Water Reactor site in Genoa, WI to the Barnwell Disposal Facility in Barnwell, SC. This special permit provides no relief from the Hazardous Materials Regulations (HMR) other than as specifically stated herein.
 - b. The safety analyses performed in the development of this special permit only considered the hazards and risks associated with the transportation in commerce.
 - c. Party status will not be granted to this special permit.
3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-180.
4. REGULATIONS FROM WHICH EXEMPTED: 49 CFR § 173.416(a) insofar as the reactor pressure vessel may be transported under a special package authorization granted by the U.S. Nuclear Regulatory Commission in accordance with 10 CFR § 71.41(d).
5. BASIS: This special permit is based on the application of Dairyland Power Cooperative dated July 21, 2006 submitted in accordance with § 107.105 and the public proceeding thereon.

6. HAZARDOUS MATERIALS (49 CFR § 172.101):

Hazardous Materials Description			
Proper Shipping Name	Hazard Class/ Division	Identification Number	Packing Group
Radioactive material, transported under special arrangement, <i>non fissile or fissile excepted</i>	7	UN2919	N/A

7. SAFETY CONTROL MEASURES:

a. PACKAGING - The reactor pressure vessel package and contents must be as described in the special package authorization granted by the U.S. Nuclear Regulatory Commission in accordance with 10 CFR § 71.41(d).

b. OPERATIONAL CONTROLS -

(1) Package preparation and transportation must be conducted in accordance with the special package authorization granted by the U.S. Nuclear Regulatory Commission in accordance with 10 CFR § 71.41(d).

(2) The reactor pressure vessel must be consigned as exclusive use.

c. COMMUNICATIONS -

(1) The outside of the reactor pressure vessel package must be plainly and durably marked "DOT-SP 14383". Letters and numerals must be at least 0.25 inches wide and 4.0 inches high.

(2) The outside of the reactor pressure vessel package must be marked and labeled according to the applicable provisions of the HMR for bulk packaging.

(3) The outside of the package must be durably and legibly marked with the package identification marking indicated in the U.S. Nuclear Regulatory Commission

special package authorization.

(4) The shipping paper related to the shipment of the package must bear the package identification marking indicated in the U.S. Nuclear Regulatory Commission special package authorization.

8. SPECIAL PROVISIONS:

a. A person who is not a holder of this special permit who receives a package covered by this special permit may reoffer it for transportation provided no modification or change is made to the package or its contents and it is reoffered for transportation in conformance with this special permit and the HMR.

b. A current copy of this special permit must be maintained at each facility where the package is offered or reoffered for transportation.

9. MODES OF TRANSPORTATION AUTHORIZED: Motor Vehicle, Rail Freight.

10. MODAL REQUIREMENTS: A current copy of this special permit must be carried aboard each motor vehicle or rail freight used to transport the package covered by this special permit.

11. COMPLIANCE: Failure by a person to comply with any of the following may result in suspension or revocation of this special permit and penalties prescribed by the Federal hazardous materials transportation law, 49 U.S.C. 5101 et seq:

- o All terms and conditions prescribed in this special permit and the Hazardous Materials Regulations, 49 CFR Parts 171-180.
- o Persons operating under the terms of this special permit must comply with the security plan requirement in Subpart I of Part 172 of the HMR, when applicable.
- o Registration required by § 107.601 et seq., when applicable.

Each "Hazmat employee", as defined in § 171.8, who performs a function subject to this special permit must receive training on the requirements and conditions of this special

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permit in addition to the training required by §§ 172.700 through 172.704.

No person may use or apply this special permit, including display of its number, when this special permit has expired or is otherwise no longer in effect.

12. REPORTING REQUIREMENTS: The carrier is required to report any incident involving loss of packaging contents or packaging failure to the Associate Administrator for Hazardous Materials Safety (AAHMS) as soon as practicable. (Sections 171.15 and 171.16 apply to any activity undertaken under the authority of this special permit.) In addition, the holder(s) of this special permit must inform the AAHMS, in writing, of any incident involving the package and shipments made under the terms of this special permit.

Issued in Washington, D.C.:



for Robert A. McGuire
Associate Administrator
for Hazardous Materials Safety

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Pipeline and Hazardous Material Safety Administration, Department of Transportation, Washington, D.C. 20590. Attention: PHH-31.

Copies of this special permit may be obtained by accessing the Hazardous Materials Safety Homepage at http://hazmat.dot.gov/sp_app/special_permits/spec_perm_index.htm. Photo reproductions and legible reductions of this special permit are permitted. Any alteration of this special permit is prohibited.

PO: WILLIAMSJ